

Chain Singh Kapoor vs State Of Himachal Pradesh & Ors on 19 July, 2024

Neutral Citation No. (2024:HHC:5565) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No. 36 of 2021 Reserved on: 02.07.2024 .

Date of Decision: 19.7.2024.

Chain Singh Kapoor

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Versus

State of Himachal Pradesh & Ors.

...Responden

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Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No. For the Petitioner : Mr. Rajiv Jiwan, Senior Advocate, with Mr. Hitender Verma, Advocate.

For the Respondents : Mr. Lokender Kutlehria, Additional Advocate General for respondents No. 1 to 3.

Mr. S.D. Gill, Advocate, for respondent No. 4.

Rakesh Kainthla, Judge The petitioner has filed the present petition for quashing F.I.R. No. 10 of 2020, dated 15.01.2020, registered for the commission of offences punishable under Sections 454, 380 and 506 read with Section 34 of the Indian Penal Code (IPC) in Police Station Palampur, Whether reporters of Local Papers may be allowed to see the judgment? Yes.

District Kangra, H.P. and consequent proceedings arising out of the F.I.R.

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2. Briefly stated, the facts giving rise to the present petition are that respondent No. 3 (informant) filed an application before the police stating that she had gone to Bazaar on 15.01.2020. Her daughter called her at 3:10 p.m. and told her that her father (the present petitioner) had visited the home. He had brought one security person and one female with him. They had removed the informant's article from one room and kept them in another room. The informant reached the spot

with the police and found that the garage was locked.

Her husband and security official were inside the room. The police interrogated them and the informant's husband (present petitioner) revealed that he had allotted a different set to the informant. The police advised both of them to not quarrel with each other. The informant went to the room where her articles were kept. She checked her articles and found that her purse was missing. The purse contained jewellery. The police registered the F.I.R. and conducted the investigation. The police arrested the petitioner and the petitioner got recovered two gold rings, one pair of earrings, a PAN card, Aadhaar card, copy of the gas connection and ATM cards etc. The informant identified them as her articles. The police completed the investigation and filed a charge sheet before the Court.

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3. The petitioner has filed the present petition for quashing of the F.I.R. It has been asserted that the petitioner is an Engineer in the Merchant Navy by profession. He remains on his job for six months at one time. The parties did not have cordial relations. The petitioner filed a divorce petition in Mumbai in the year 2014. The petition was dismissed in default with the hope that the parties would settle the matter amicably. The informant harassed the petitioner.

The petitioner made complaints to the police against her. The place where the house was constructed belonged to the petitioner as per the report of the Revenue Officials. The tenant of the petitioner had also made the complaints against the informant and the police had settled the matter. The allegations in the F.I.R. do not constitute the commission of any offence. There cannot be a criminal trespass because the petitioner is the owner of the house. A false complaint of theft was made. Therefore, it was prayed that the present petition be allowed and F.I.R. be ordered to be quashed.

4. The petition is opposed by filing a reply by respondents No. 1 to 3 making preliminary submissions reproducing the contents of the F.I.R. The contents of the petition were denied on merits. It was asserted that the contents of the FIR disclosed the commission of a .

cognizable offence. It was found during the investigation that the petitioner had threatened to kill the informant. Hence, Section 506 was added. The police have completed the investigation and filed the charge sheet before the competent Court of law. The incident had taken place in the house, which is in exclusive possession of the petition be dismissed.

r to informant and her daughter. Therefore, it was prayed that the present

5. A separate reply was filed by the informant (respondent No.4) making preliminary submissions regarding the concealment of the facts. The contents of the petition were denied on merits. It was asserted that the petitioner had filed a petition under Section 13 (1) of the Hindu Marriage Act at Thane (Mumbai). The learned Court passed an interim order of maintenance in favour of the informant. This order was assailed by the petitioner before the Bombay High Court but the petition

was dismissed. The petitioner did not continue with the petition and got it dismissed in default. The petitioner had his property in Mumbai and Palampur. He sold his property in Mumbai and purchased a Flat in Royal City Zirakpur. The informant is residing with her daughter in two rooms with a kitchen, bathroom and lavatory in the building owned by the petitioner. The building has other sets but the same are lying vacant. The petitioner solemnized another .

marriage and is residing with his second wife. The relationship between the parties was cordial earlier but deteriorated after the petitioner solemnized the second marriage. The petitioner has filed a false petition. Hence, it was prayed that the present petition be dismissed.

6. I have heard Mr. Rajiv Jiwan, learned Senior Counsel assisted by Mr. Hitender Verma, learned counsel for the petitioner, Mr. Lokender Kutlehria, learned Additional Advocate General for respondents No. 1 to 3/State and Mr. S.D. Gill learned counsel for respondent No.4.

7. Mr Rajiv Jiwan, learned Senior Counsel submitted that the contents of the F.I.R. are false. The parties do not have cordial relations and the informant lodged a false F.I.R. to harass the petitioner. It is duly proved on record by the report of the Revenue Authorities that the land over which the house has been constructed belongs to the petitioner and there cannot be any house-trespass.

False allegations of theft were made. As per the case of the prosecution, the petitioner only shifted the articles from one room to another, which does not constitute theft or house trespass. Section 506 of IPC was added by the police during the investigation without .

any material to support the same. Hence, he prayed that the present petition be allowed and F.I.R. be quashed.

8. Mr Lokender Kutlehria, learned Additional Advocate General submitted that the contents of the F.I.R. disclose the commission of cognizable offences. The petitioner entered the room in possession of the informant and took away her articles. The police conducted the investigation and filed the charge sheet before the Court. The truthfulness or otherwise of the F.I.R. is not to be seen at this stage but will be seen during the trial. Therefore, he prayed that the petition be dismissed.

9. Mr. S.D. Gill learned counsel for the informant adopted the submissions of Mr Lokender Kutlehria and submitted that the room was in exclusive possession of the informant. The petitioner had no right to trespass into it. Hence, he prayed that the petition be dismissed.

10. I have given considerable thought to the submissions at the bar and have gone through the record carefully.

11. The law regarding the exercise of jurisdiction under Section 482 of Cr.P.C. was considered by the Hon'ble Supreme Court in .

A.M. Mohan v. State, 2024 SCC OnLine SC 339, wherein it was observed:-

9. The law with regard to the exercise of jurisdiction under Section 482 of Cr. P.C. to quash complaints and criminal proceedings has been succinctly summarized by this Court in the case of *Indian Oil Corporation v. NEPC India Limited* (2006) 6 SCC 736: 2006 INSC 452 after considering the earlier precedents.

It will be apposite to refer to the following observations of this Court in the said case, which read thus:

"12. The principles relating to the exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few--*Madhavrao Jiwajirao Scindia v. Sambhajirao Chandrojirao Angre* [(1988) 1 SCC 692: 1988 SCC (Cri) 234], *State of Haryana v. Bhajan Lal* [1992 Supp (1) SCC 335: 1992 SCC (Cri) 426], *Rupan Deol Bajaj v. Kanwar Pal Singh Gill* [(1995) 6 SCC 194: 1995 SCC (Cri) 1059], *Central Bureau of Investigation v. Duncans Agro Industries Ltd.* [(1996) 5 SCC 591: 1996 SCC (Cri) 1045], *State of Bihar v. Rajendra Agrawalla* [(1996) 8 SCC 164: 1996 SCC (Cri) 628], *Rajesh Bajaj v. State NCT of Delhi* [(1999) 3 SCC 259: 1999 SCC (Cri) 401], *Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd.* [(2000) 3 SCC 269: 2000 SCC (Cri) 615], *Hridaya Ranjan Prasad Verma v. State of Bihar* [(2000) 4 SCC 168: 2000 SCC (Cri) 786], *M. Krishnan v. Vijay Singh* [(2001) 8 SCC 645: 2002 SCC (Cri) 19] and *Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haque* [(2005) 1 SCC 122: 2005 SCC (Cri) 283]. The principles, relevant to our purpose are:

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the .

allegations. Neither a detailed inquiry nor a meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint is warranted while examining prayer for quashing a complaint.

(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with mala fides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are

necessary for making out the offence. (v.) A given set of facts may make out: (a) purely a civil wrong; (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A commercial transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy in civil law, may also involve a criminal offence. As the nature and scope of a civil proceeding are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is whether the allegations in the complaint disclose a criminal offence or not.

12. Similar is the judgment in *Maneesha Yadav v. State of U.P.*, .

2024 SCC OnLine SC 643, wherein it was held: -

12. We may gainfully refer to the following observations of this Court in the case of *State of Haryana v. Bhajan Lal* 1992 Supp (1) SCC 335: 1990 INSC 363:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code. (3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-

cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

13. The present petition has to be considered as per the parameters laid down by the Hon'ble Supreme Court.

14. Section 441 of IPC defines the term Criminal trespass as entering into or upon the property in possession of another with an .

intent to commit an offence or intimidate, insult or annoy any person in possession of such property. It is apparent that the offence of criminal trespass is always committed against the possession and the ownership in such a situation is irrelevant. The informant specifically stated that she was in possession of the room. The police also found that she was in possession of the room. The petitioner filed a document (Annexure CR-2), in which he mentioned that his wife broke the locks of the house and entered the house. She captured the house having four Bedrooms, a Hall and a Kitchen (BHK) duplex. She started living in the set, which was kept by the petitioner for his use.

He further stated that because of the behaviour of the informant, he was unable to visit his hometown. The petitioner also filed a letter addressed to SHO, Palampur (Annexure CR-3), in which he stated that the informant had not resided with him since 2014. These documents show that the petitioner is residing separately from the informant and the informant is in possession of the house; hence, the petitioner can commit house trespass by entering the house in possession of the informant and the ownership of the house will not assist him.

15. It was submitted that the allegations in the F.I.R. do not constitute lurking house trespass. It is not necessary to determine .

which trespass was committed by the petitioner because the learned Trial Court has to frame the charges and it would be improper to prejudge the issue without affording any opportunity to argue the matter based on material collected by the prosecution. Hence, the nature of the house trespass committed by the petitioner is not being adjudicated; however, sufficient to say that the allegations in the F.I.R.

constitute the commission of the offence of house trespass.

16. The informant asserted that her purse was stolen. The police conducted the investigation and recovered the stolen articles from the possession of the petitioner. Hence, the version of the informant regarding the theft is prima facie established by the investigation of the police.

17. The police found during the investigation that the petitioner had intimidated the informant. It was submitted that false allegations were made during the investigation and there were no averments in the F.I.R. regarding the criminal intimidation. This will not help the petitioner because the Court has to see a prima facie case at this stage and the allegations made during the investigation are sufficient to constitute a prima facie case.

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18. It was submitted that the contents of the FIR are false. This submission cannot be appreciated at this stage. The Court exercising jurisdiction under Section 482 of Cr.P.C. does not hold a mini-trial and cannot adjudicate the truthfulness or falsity of the contents of the F.I.R. It was laid down by the Hon'ble Supreme Court in Priyanka Jaiswal vs. State of Jharkhand, 2024 SCC OnLine SC 685 that the Court exercises extra-ordinary jurisdiction under Section 482 of Cr.P.C. and cannot conduct a mini-trial or enter into an appreciation of evidence of a particular case. It was observed:-

"13. We say so for reasons more than one. This Court in catena of Judgments has consistently held that at the time of examining the prayer for quashing of the criminal proceedings, the court exercising extra-ordinary jurisdiction can neither undertake to conduct a mini-trial nor enter into appreciation of evidence of a particular case. The correctness or otherwise of the allegations made in the complaint cannot be examined on the touchstone of the probable defence that the accused may raise to stave off the prosecution and any such misadventure by the Courts resulting in proceedings being quashed would be set aside. This Court in the case of Akhil Sharda 2022 SCC OnLine SC 820 held to the following effect:

"28. Having gone through the impugned judgment and order passed by the High Court by which the High Court has set aside the criminal proceedings in the exercise of powers under Section 482 Cr. P.C., it appears that the High Court has virtually conducted a mini-trial, which as such is not permissible at this stage and while

deciding the application under Section 482 Cr. P.C. As observed and held by this Court in a catena of decisions no mini-trial can be conducted by the High Court in the exercise of powers under Section 482 Cr.

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P.C. jurisdiction and at the stage of deciding the application under Section 482 Cr. P.C., the High Court cannot get into appreciation of evidence of the particular case being considered."

19. A similar view was taken in Maneesha Yadav vs State of U.P. SSC OnLine SC 643, wherein it was held that: -

"13. As has already been observed hereinabove, the Court would not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint at the stage of quashing of the proceedings under Section 482 Cr. P.C. However, the allegations made in the FIR/complaint, if taken at its face value, must disclose the commission of an offence and make out a case against the accused. At the cost of repetition, in the present case, the allegations made in the FIR/complaint even if taken at its face value, do not disclose the commission of an offence or make out a case against the accused. We are of the considered view that the present case would fall under Category-3 of the categories enumerated by this Court in the case of Bhajan Lal (supra).

14. We may gainfully refer to the observations of this Court in the case of Anand Kumar Mohatta v. State (NCT of Delhi), Department of Home(2019) 11 SCC 706: 2018 INSC 1060:

"14. First, we would like to deal with the submission of the learned Senior Counsel for Respondent 2 that once the charge sheet is filed, the petition for quashing of FIR is untenable. We do not see any merit in this submission, keeping in mind the position of this Court in Joseph Salvaraj A. v. State of Gujarat [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23]. In Joseph Salvaraj A. [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23], this Court while deciding the question of whether the High Court could entertain the Section 482 petition for quashing of FIR when the charge-sheet was filed by the police during the pendency of the Section 482 petition, observed : (SCC p. 63, .

para 16) "16. Thus, the general conspectus of the various sections under which the appellant is being charged and is to be prosecuted would show that the same are not made out even prima facie from the complainant's FIR. Even if the charge sheet had been filed, the learned Single Judge [Joesph Saivaraj A. v. State of Gujarat, 2007 SCC OnLine Guj 365] could have still examined whether the offences alleged to have been committed by the appellant were prima facie made out from the complainant's FIR,

charge-sheet, documents, etc. or not."

20. Hence, the F.I.R. cannot be quashed on the ground that the F.I.R. is false. It is the matter to be seen by the learned Trial Court, where the matter is pending. The challan has been prepared and presented before the learned Trial Court and the learned Trial Court is seized of the matter. It was laid down by the Hon'ble Supreme Court in *Iqbal v. State of U.P.*, (2023) 8 SCC 734: 2023 SCC OnLine SC 949 that when the charge sheet has been filed, learned Trial Court should be left to appreciate the same. It was observed:

"At the same time, we also take notice of the fact that the investigation has been completed and charge-sheet is ready to be filed. Although the allegations levelled in the FIR do not inspire any confidence more particularly in the absence of any specific date, time, etc. of the alleged offences, yet we are of the view that the appellants should prefer a discharge application before the trial court under Section 227 of the Code of Criminal Procedure (CrPC). We say so because even according to the State, the investigation is over and the charge sheet is ready to be filed before the competent court. In such circumstances, the trial court should be allowed to look into the materials which the .

investigating officer might have collected forming part of the charge sheet. If any such discharge application is filed, the trial court shall look into the materials and take a call whether any case for discharge is made out or not."

21. In view of the above, extraordinary jurisdiction under Section 482 of cr.P.C. cannot be exercised in the present case. Hence, the present petition fails and the same is dismissed.

22. The observation made hereinabove shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

23. Registry is directed to transmit the records of the case to the learned Trial Court forthwith.

(Rakesh Kainthla) Judge 19th July, 2024 (ravinder)